

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

|                                                          |   |                           |
|----------------------------------------------------------|---|---------------------------|
| -----X                                                   |   |                           |
| Oscar Urena,                                             | : |                           |
|                                                          | : | Index Number:             |
|                                                          | : | Date Purchased:           |
|                                                          | : | Date Filed:               |
| Plaintiff,                                               | : | SUMMONS                   |
| -against-                                                | : |                           |
| City of New York, New York City Police Department,       | : |                           |
| Police Officer John Sullivan, Tax Reg# 951310 of Housing | : |                           |
| PSA 9 and New York City Police Officers John Doe,        | : |                           |
|                                                          | : | Plaintiff's residence is: |
|                                                          | : | 1365 College Avenue       |
|                                                          | : | Bronx, NY 10456           |
| Defendants,                                              | : |                           |
| -----X                                                   |   |                           |

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Queens County.

Dated: September 9, 2019  
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiffs  
888 Grand Concourse, Suite 1H  
Bronx, NY 10451  
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer John Sullivan, Tax Reg# 951310 of Housing PSA 9

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
Oscar Urena,

:

Plaintiffs

: VERIFIED COMPLAINT

-against- :

City of New York, New York City Police Department, :  
Police Officer John Sullivan, Tax Reg# 951310 of Housing :  
PSA 9 and New York City Police Officers John Doe, :

:

Defendants :

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Oscar Urena (hereinafter referred to as "O. URENA") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer John Sullivan, Tax Reg# 951310 of Housing PSA 9 (hereinafter referred to as "SULLIVAN") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or about June 24, 2018 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. That on or about October 18, 2018 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about August 15, 2015 at approximately 8:55PM in the vicinity of 61-24 165 Street, Queens, New York, Plaintiff was sitting inside the backseat of a car that was parked.

9. That shortly thereafter, Christian Cruz, (hereinafter referred to as "CRUZ") and Kenny Urena, (hereinafter referred to as "K. URENA") ran towards the car and the entered the car.

10. That CRUZ entered the driver's seat of the car.

11. That K. URENA entered the front passenger seat of said car.

12. That CRUZ began driving the car.

13. That on or about August 15, 2015 at approximately 9:00PM in the vicinity of 61-24 165 Street, Queens, New York, SULLIVAN and DOES stopped the car, removed CRUZ, K. URENA and O. Urena, handcuffed them and placed them under arrest.

14. That at no time on August 15, 2015 had Plaintiff committed a crime or violation.

15. That at no time on August 15, 2015 had SULLIVAN or DOES observed Plaintiff commit a crime or a violation.
16. That at no time was Plaintiff involved in a burglary.
17. That at no time was Plaintiff in possession of burglar's tools.
18. That at some point after CRUZ, K. URENA and O. URENA were handcuffed and arrested they were placed on the sidewalk near the car wherein two witnesses to a burglary approached all three men.
19. That the two witnesses identified CRUZ and K. URENA as being involved in a burglary that occurred at 61-24 165 Street, Queens NY.
20. That at no time did any witnesses identify O. URENA as having been involved in a burglary.
21. That despite not having been observed by either SULLIVAN, DOES or any civilian witnesses, O. URENA continued to be placed in handcuffs and arrested.
22. That O. URENA was brought to the Housing PSA 9 precinct.
23. That while Plaintiff was held in the Housing PSA 9 precinct he was confined to a cell with numerous other male prisoners.
24. That while Plaintiff was held in the Housing PSA 9 precinct he was strip searched and that nothing illegal was found.
25. That after being held in the Housing PSA 9 precinct for several hours, he was transported to Queens County Central Booking, located at 125-01 Queens Boulevard, Queens, NY.
26. That while Plaintiff was held in Queens County Central Booking, he was confined to a cell with numerous other male prisoners.

27. That on or about August 16, 2015 Plaintiff was arraigned on docket 2015QN040874 wherein he was charged with Burglary in the First Degree and other related offenses.

28. That at the arraignment, Plaintiff was remanded to the custody of the New York City Corrections Department.

29. That on and between August 16, 2015 and August 29, 2015, Plaintiff remained in New York City Corrections Department custody until his bail was paid and he was released.

30. That between August 16, 2015 through June 12, 2018, Plaintiff made numerous court appearances until the matter was dismissed after a finding of not guilty by jury trial.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

33. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

34. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

35. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

36. That as a result of the Defendants' actions, Plaintiff missed multiple days from work.

37. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

40. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS**

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

45. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

46. That since the time of the arrest and during the pendency of the criminal case against Plaintiff, SULLIVAN and DOES persisted in their false claim that Plaintiff was identified by witnesses as having been involved in a burglary when they knew no witnesses had in fact identified him.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.



48. At all times pertinent hereto, SULLIVAN and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

49. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SULLIVAN and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

50. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49, as if more fully stated herein at length.

51. The City of New York and New York City Police Department's failure to provide adequate training and supervision to SULLIVAN and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

52. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51 as if more fully stated herein at length.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

54. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

**WHEREFORE**, Plaintiffs each demand judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

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Jason A. Steinberger, Esq.

Attorney for Plaintiffs

888 Grand Concourse, Suite 1H

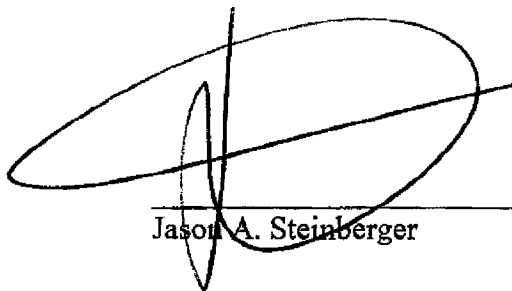
Bronx, NY 10451

(646) 256-1007

## STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: September 9, 2019



Jason A. Steinberger

**Index Number:****SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS**

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**OSCAR URENA,****Plaintiffs****-against-**

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**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE  
OFFICER JOHN DULLIVAN, TAX REG# 951319 OF HOUSING PSA 9 AND NEW  
YORK CITY POLICE OFFICERS JOHN DOE,****Defendant.**

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**SUMMONS AND COMPLAINT**

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**LAW OFFICES OF JASON A. STEINBERGER, LLC**  
888 Grand Concourse  
Suite 1H  
Bronx, NY 10451

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**To:**  
**Attorney (s) for Defendant(s)**

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Service of a copy of the within \_\_\_\_\_ is hereby admitted.

Dated: \_\_\_\_\_  
Attorney(s) for

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**PLEASE TAKE NOTICE**

☐ that the within is a (certified) true copy of  
☐ entered in the office of the clerk of the within named Court on

**NOTICE  
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.  
**NOTICE OF** \_\_\_\_\_  
**SETTLEMENT** at \_\_\_\_\_  
on \_\_\_\_\_ 200 , at \_\_\_\_\_ m.

**Dated:**

**JASON A. STEINBERGER, ESQ.**  
**888 Grand Concourse, Suite 1H**  
**Bronx, NY 10451**

**To:**  
**Attorney(s) for**